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PureTask — Cease-and-Desist and DMCA Templates

Document 13 Version: 1.0

This document contains **four enforcement templates** PureTask LLC may use to protect its intellectual property and contractual rights:

1. **Template A — Cease-and-Desist (Trademark Infringement)** — for unauthorized use of the “PureTask” word mark, “Dash” mascot, “P” house mark, or related trade dress.
2. **Template B — Cease-and-Desist (Platform Attribution Fee / Off-Platform Circumvention)** — for Clients who book a Pro off-Platform within the 30-day attribution window.
3. **Template C — DMCA Takedown Notice** — sent to third-party platforms (App Stores, social media, hosting providers) when infringing content appears there.
4. **Template D — Response to DMCA Counter-Notice** — for when an alleged infringer pushes back on a takedown.

These templates are operational and not part of the customer-facing Platform documents. Use under guidance of legal counsel for any matter of consequence.

Template A — Cease-and-Desist (Trademark Infringement)

HOW TO USE THIS TEMPLATE

Send to a third party who is using the PureTask name, logo, Dash mascot, or related trade dress without authorization. Typical scenarios:

- A competitor uses “PureTask” or a confusingly similar name (e.g., “PureTasks Cleaning,” “PureTask Pro Cleaning,” etc.);
- A look-alike app uses Dash mascot or similar hummingbird-with-cleaning-products imagery;
- A copycat marketplace mimics PureTask’s trade dress (color palette, layout, signature features);
- A bad-actor Pro or Client misrepresents themselves as employed by or partnered with PureTask.

Send by email to the recipient’s known contact and, where higher-stakes, **also by certified mail**. Keep all delivery proof for at least 3

years (the federal trademark statute of limitations is governed by laches; longer is safer).

Before sending: (a) confirm PureTask trademark rights (common-law use + ideally a USPTO registration or pending application); (b) gather evidence of the infringing use (screenshots with URLs and timestamps); (c) discuss with IP counsel for anything over a generic copycat.

Letter

PureTask LLC [STREET ADDRESS] Sacramento, California [ZIP] Email: legal@puretask.co

[DATE]

Via Email and Certified Mail

[RECIPIENT NAME] [RECIPIENT BUSINESS NAME, IF ANY] [RECIPIENT ADDRESS] [RECIPIENT EMAIL]

RE: Cease and Desist — Trademark Infringement and Unfair Competition

Dear [RECIPIENT NAME]:

I write on behalf of **PureTask LLC** (“PureTask”), a California limited liability company that operates an online marketplace for residential and commercial cleaning services under the trademark “**PureTask**” (the “PureTask Mark”), the “**Dash**” hummingbird mascot, and the “**P**” house design mark (collectively, with related trade dress, the “PureTask Marks”).

PureTask is the lawful owner of the PureTask Marks through (i) substantial and continuous use in commerce throughout California, Texas, and Florida since [DATE OF FIRST USE], establishing common-law trademark rights in these jurisdictions, and (ii) [if applicable] U.S. Patent and Trademark Office Application Serial No. [_____] / Registration No. [_____].

Infringing Conduct

It has come to our attention that you (or your business, [RECIPIENT BUSINESS NAME]) are using marks, designs, or trade dress confusingly similar to the PureTask Marks. Specifically:

- [DESCRIBE THE INFRINGING USE — e.g., “You operate a website at example.com promoting cleaning services under the name ‘PureTasks Cleaning’ (note the trailing ‘s’).”]
- [INCLUDE URL, SCREENSHOTS WHERE ATTACHED, DATES OBSERVED.]
- [DESCRIBE THE LIKELIHOOD OF CONSUMER CONFUSION.]

Your use of these confusingly similar marks is likely to cause consumer confusion, mistake, or deception as to the source, sponsorship, affiliation, or approval of your services, in violation of:

- The **Lanham Act, 15 U.S.C. § 1125(a)** (false designation of origin and unfair competition);
- **California Business & Professions Code §§ 14245, 14247** (trademark infringement and unfair competition);
- **California Business & Professions Code § 17200** (unfair competition);
- The common law of unfair competition and trademark infringement.

Demand

PureTask demands that you immediately:

1. **Cease and desist** all use of the PureTask Marks and any confusingly similar mark in commerce;
2. **Remove** all infringing materials from your website, social media accounts, advertising, business cards, signage, and any other marketing channel;
3. **Transfer or release** any domain names containing the PureTask Marks or confusingly similar terms;
4. **Provide written confirmation** of compliance with the above demands, signed by you, within **fourteen (14) days** of the date of this letter — by **[DEADLINE DATE]**;
5. **Account** for any revenues earned from the use of the infringing marks (we reserve the right to seek disgorgement of profits and damages under 15 U.S.C. § 1117).

Reservation of Rights

PureTask is prepared to take all available legal action to protect its rights, including filing suit in federal court for trademark infringement, false designation of origin, unfair competition, and dilution. Remedies sought may include:

- Preliminary and permanent injunctive relief;
- Disgorgement of profits;
- Compensatory damages (including treble damages for willful infringement);
- Attorneys' fees in "exceptional cases" under 15 U.S.C. § 1117(a);
- Statutory damages where applicable.

This letter is sent without prejudice to PureTask's rights and remedies, all of which are expressly reserved.

Settlement

PureTask is willing to consider a non-litigation resolution that includes complete cessation of the infringing use, transfer of any infringing domain names, and a mutual release. Please contact us at legal@puretask.co within 14 days to discuss.

Govern yourself accordingly.

Sincerely,

[NAME OF SENDER] [TITLE] **PureTask LLC** legal@puretask.co

Enclosures: [Screenshots, USPTO records, evidence of infringing use]

Template B — Cease-and-Desist (Platform Attribution Fee)

HOW TO USE THIS TEMPLATE

Send to a Client who books a Pro off-Platform within 30 days of an active Booking, in violation of Section 15.A of the Terms of Service. Provide internal documentation of the off-Platform booking (Pro confession, Client text exchange, payment confirmation, etc.). Keep the tone professional; this is a fee collection notice, not a hostile dispute. Most Clients pay when reminded that the term is non-negotiable.

Letter

PureTask LLC Sacramento, California Email: legal@puretask.co

[DATE]

[CLIENT NAME] [CLIENT EMAIL]

RE: Platform Attribution Fee — Off-Platform Booking with [PRO NAME]

Dear [CLIENT NAME]:

You agreed to the **PureTask Terms of Service** (the “Terms”) on [DATE OF ToS ACCEPTANCE] when you signed up. Section 15.A of the Terms provides:

*“During an active Booking and for 30 days thereafter, if a Client books the same Pro outside the Platform for cleaning services substantially similar to those discovered through the Platform, the Client agrees to pay PureTask a one-time **Platform Attribution Fee** equal to the Booking Facilitation Fee that would have applied to one off-Platform Booking, as **liquidated damages** to*

compensate PureTask for its lead-generation, matching, and trust-and-safety investment.”

We have learned that on [DATE OF OFF-PLATFORM BOOKING], you booked [PRO NAME] outside the Platform within the 30-day attribution window. [DESCRIBE SOURCE OF INFORMATION — e.g., “Pro X informed us of the off-Platform booking when we asked them about their decreased activity. Pro X is not in breach of any agreement by responding to this question.”]

The applicable Platform Attribution Fee for this transaction is **\$[AMOUNT]**.

Request for Payment

Please remit the **\$[AMOUNT]** Platform Attribution Fee within **fourteen (14) days** of the date of this letter — by **[DEADLINE DATE]** — by:

- **Credit / debit card:** log in to your PureTask account and pay through the “Outstanding Fees” page;
- **ACH transfer:** contact us at **legal@puretask.co** for routing instructions.

This is liquidated damages, not a penalty. The Terms expressly state the parties’ agreement that this amount is a reasonable estimate of damages, which would otherwise be difficult or impossible to calculate, and is not a penalty. This provision is intended to comply with **California Business & Professions Code § 16600** and analogous laws in Texas and Florida.

Reservation of Rights

If payment is not received by the deadline, PureTask reserves the right to:

- Suspend or terminate your PureTask account;
- Pursue the Platform Attribution Fee in small-claims court;
- Pursue any other available legal remedy.

Discussion

If you believe this notice is in error (for example, you did not actually book this Pro outside the Platform, or the booking was outside the 30-day window), please contact us at **legal@puretask.co** within 14 days with documentation.

Sincerely,

[NAME OF SENDER] [TITLE] **PureTask LLC** **legal@puretask.co**

Template C — DMCA Takedown Notice

HOW TO USE THIS TEMPLATE

Send to a third-party platform (App Store, Google Play, social media, hosting provider, search engine) when infringing **copyrighted** PureTask content (e.g., copied app screenshots, copied marketing copy, copied Dash mascot artwork) appears there.

Note: DMCA is for *copyright*. For trademark issues (someone using the name “PureTask”), use Template A and the platform’s **trademark complaint** form, not DMCA.

Each major platform has its own DMCA submission form. Use those when they exist; this letter template is for less formal hosts or for cases where you want a written record.

Required elements under 17 U.S.C. § 512(c)(3): 1. Physical or electronic signature of authorized agent; 2. Identification of the copyrighted work; 3. Identification of the infringing material with sufficient location detail; 4. Contact information of the complaining party; 5. Good-faith belief statement; 6. Statement under penalty of perjury that information is accurate and you are authorized.

Risk of Sec. 512(f): If you misrepresent that material is infringing, you can be held liable for damages, costs, and attorneys’ fees. Don’t use DMCA as a censorship tool.

Notice

To: **[PLATFORM NAME] DMCA Designated Agent** Via: [PLATFORM DMCA URL or EMAIL] Date: [DATE]

Re: **DMCA Takedown Notice — Copyrighted Material Infringement**

I, the undersigned, am the authorized agent of **PureTask LLC** (“PureTask”), the copyright owner of the works identified below. I have a good-faith belief that material located on your platform infringes upon PureTask’s copyrights without authorization.

This notice is submitted under the **Digital Millennium Copyright Act (DMCA), 17 U.S.C. § 512(c)(3)**.

1. Identification of Copyrighted Work

The copyrighted work being infringed is:

- **Title / Description:** [E.g., “The Dash hummingbird mascot illustration, copyrighted by PureTask LLC; the PureTask mobile application screenshots; the PureTask website ‘How It Works’ marketing copy.”]
- **Original publication location:** [E.g., “https://puretask.co; PureTask app on the Apple App Store and Google Play.”]

- **Registration:** [If U.S. Copyright Office registration filed: “U.S. Copyright Office Registration No. ____”; if not: “Common-law copyright; first publication on [DATE].”]

2. Identification of Infringing Material

The material infringing PureTask’s copyright is located at:

- **URL(s):** [LIST URL(s)]
- **Account / username:** [IF APPLICABLE]
- **Description of infringement:** [E.g., “The user has uploaded a direct copy of PureTask’s Dash mascot artwork to their profile and is using it without authorization to promote a competing service.”]
- **Screenshot evidence:** [ATTACHED / LINKED]
- **Date observed:** [DATE]

3. My Contact Information

- **Name:** [YOUR NAME]
- **Title:** [TITLE]
- **Company:** PureTask LLC
- **Address:** [STREET ADDRESS], Sacramento, California [ZIP]
- **Phone:** [PHONE]
- **Email:** legal@puretask.co

4. Good-Faith Belief Statement

I have a **good-faith belief** that the use of the material in the manner complained of is not authorized by the copyright owner, its agent, or the law.

5. Statement of Accuracy and Authorization

I state under **penalty of perjury** that the information in this notification is accurate and that I am authorized to act on behalf of the copyright owner of the work that is allegedly infringed.

6. Signature

By: _____ [NAME], [TITLE] **PureTask LLC** Date:

[For email submission, “/s/ [Your Name]” is sufficient as electronic signature.]

Template D — Response to DMCA Counter-Notice

HOW TO USE THIS TEMPLATE

When an alleged infringer files a counter-notice (claiming their content does not infringe), the platform must restore the content unless PureTask files suit within 10–14 business days. This template helps decide whether to (a) sue, (b) negotiate, or (c) let the content go.

Most often the right call is to **let the content go** unless the infringement is significant. The downside of filing suit is real cost and discovery. Save lawsuits for clear, willful, commercial infringement.

Internal Decision Memo

[DATE]

Re: DMCA Counter-Notice received from [ALLEGED INFRINGER] regarding [DESCRIPTION]

Background

- Original takedown filed: [DATE]
- Counter-notice received: [DATE]
- Deadline to file suit (typically 10–14 business days): [DATE]

Counter-Notice Summary

The alleged infringer claims: - [SUMMARIZE THEIR CLAIMS — e.g., “They claim fair use as parody”; “They claim the work was independently created”; “They claim a license”; “They claim the work is in the public domain”]

PureTask’s Assessment

- **Strength of original copyright claim:** [Strong / Moderate / Weak]
- **Likelihood of success in litigation:** [%]
- **Estimated litigation cost:** \$[AMOUNT]
- **Commercial harm if not pursued:** [Significant / Moderate / Minimal]
- **Risk of Sec. 512(f) misrepresentation counterclaim:** [Low / Medium / High]

Recommendation

☐ **File suit in federal court within deadline** — necessary to maintain takedown.
☐ **Negotiate** with the counter-claimant for a license, attribution, or other resolution. ☐ **Allow content to be restored** — pursue alternative remedies or accept the result.

Approval

Approved by: _____ Name: [NAME] Title: [TITLE] Date:

Operational Reminders

Trademark Watch

Consider engaging a **trademark watch service** (e.g., Markify, Corsearch, Thomson CompuMark) after USPTO registration. ~\$200-1,500/yr. Identifies competitors filing similar marks before they register, allowing PureTask to oppose at the USPTO instead of suing post-registration.

Documentation Habits

Maintain a **brand-protection log** with: - Date and source of each potential infringement spotted; - Screenshots with URLs and timestamps; - Action taken (none, monitoring, C&D, lawsuit, etc.); - Outcome.

Don't Use C&Ds Frivolously

Trademark and copyright C&Ds are powerful but get treated harshly by courts when used to suppress speech, criticism, or legitimate competition (e.g., a YouTube reviewer using your name to criticize PureTask is **nominative fair use**, not infringement). Streisand-effect risk is real. Send C&Ds only when: - The infringing use is clear and commercial; - The risk to PureTask's brand is real; - You have evidence and a good-faith basis.

Designated DMCA Agent Registration

Don't forget: **PureTask must register a DMCA Designated Agent with the U.S. Copyright Office** at dmca.copyright.gov to receive DMCA protections under § 512. Registration is \$6, renewed every 3 years. Without this registration, PureTask **cannot rely on the § 512 safe harbor** when User Content infringes someone else's copyright.

This document is a collection of general templates. They are not legal advice. Engage IP counsel for any non-trivial enforcement action. False or overreaching C&Ds and DMCA notices can themselves create liability — under Section 512(f) for DMCA, and under California Code of Civil Procedure § 425.16 (anti-SLAPP) for state law claims. Use sparingly and substantively.